

Ruling

1. After careful examination of the Petitions, attached documents and proposed orders, the Court finds good cause to approve both Petitions. Accordingly, the Petitions are granted. The Court will execute the Proposed Order Approving Compromise of Minors Claims and the Proposed Order to Deposit Funds into a Blocked Account lodged by Counsel on April 1, 2026.
2. The Court orders Counsel to secure the Bank's signature on Form MC-356 (Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account). Counsel or petitioner must file this signed receipt back with the court within thirty (30) days to prove the funds were deposited in blocked accounts.
3. No appearance is required on July 1, 2026.

3. 9:00 AM CASE NUMBER: C22-01162
CASE NAME: ANTONIO SAUCEDO VS. BERTHA ADIN
***HEARING ON MINOR'S COMPROMISE AS TO ANDRE MIRAMONTES**
FILED BY: BANUELOS, ZILA ALONSO
TENTATIVE RULING:

See Line 2.

4. 9:00 AM CASE NUMBER: C23-02575
CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK
HEARING ON SUMMARY MOTION FILING PARTIES: DEFENDANTS PLEASANT HILL RECREATION & PARK DISTRICT AND CHRIS PETLOCK
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Pleasant Hill Recreation & Park District and Defendant Chris Petlock's Motion for Summary Judgment or in the Alternative Summary Adjudication. The Motion relates to Plaintiff Matthew Andrade's Second Amended Complaint for (1) discrimination based on age; (2) failure to provide reasonable accommodations; (3) discrimination based on disability; (4) work environment harassment; (5) failure to prevent harassment, discrimination, and retaliation; (6) retaliation; and (7) wrongful termination. The Court previously sustained Defendants' demurrer to the wrongful termination claim without leave to amend.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**. The Motion is **granted** with respect to Plaintiff's claims for (1) age discrimination and (4) workplace harassment. The Motion is **denied** with respect to Plaintiff's claims for (2) failure to accommodate, (3) disability discrimination, (5) failure to prevent, and (6) retaliation.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(c) provides, in relevant part:

The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.

Section 437c(p)(1) provides:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Analysis

This is an employment action. Plaintiff alleges several violations of FEHA in connection with his employment with Defendant Pleasant Hill Recreation and Park District.

1. Age Discrimination (Gov. Code § 12940)

Defendants argue that the evidence does not support Plaintiff's allegations of scheduling abuse and he cannot therefore make out a *prima facie* case of age discrimination under FEHA.

Plaintiff alleges in his Second Amended Complaint that "Pleasant Hill has a common scheme in place to phase out its more seasoned and older blue-collar employees by scheduling them for the most difficult and taxing shifts—namely, the night shifts. The story is no different for Mr. Andrade who remains one of the highest paid blue-collar workers at Pleasant Hill." The SAC further alleges that around the time Plaintiff turned 40 "Pleasant Hill specifically targeted Mr. Andrade, scheduling him for the most difficult shifts." (SAC at para 52.)

"In order to make out a *prima facie* case of age discrimination under FEHA, a plaintiff must present evidence that the plaintiff (1) is over the age of 40; (2) suffered an adverse employment action; (3) was performing satisfactorily at the time of the adverse action; and (4) suffered the adverse action under circumstances that give rise to an inference of unlawful discrimination, i.e., evidence that the plaintiff was replaced by someone significantly younger than the plaintiff." (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal. App. 4th 297, 321.) "An employee alleging age discrimination must ultimately prove that the adverse employment action taken was based on his or her age." (*Hersant v. Department of Social Services* (1997) 57 Cal.App.4th 997, 1002,) "The burden shifting system requires the employee first establish a prima facie case of age discrimination. If the employee does so, the employer is required to offer a legitimate non-age-based reason for the adverse employment action.

If it does not, then the employee prevails. [Citations.]” (*Ibid.*) The general requirement that the employee offer circumstantial evidence such that a reasonable inference of age discrimination arises is not an onerous one. (*Id.* at pp. 1002-1003.)

Defendants focus on the second element, arguing both that Plaintiff did not suffer an adverse employment action in the form of scheduling abuse and also that assignments to large events and night shifts are not an “adverse employment action” within the meaning of FEHA.

With respect to scheduling, Defendant adduced evidence that Plaintiff was scheduled for fewer night shifts following his 40th birthday (51.4% of his shifts ended after 10pm after his birthday compared to 65.2% of shifts prior to his birthday). (Def. Exhs. C, D, and J.) However, Plaintiff argues that this is based on incomplete data and presented evidence that Plaintiff’s schedule after turning 40 was 64% night shifts. (Plt. Exh C-1.) On reply, Defendant argues that Plaintiff mischaracterizes this evidence as Plaintiff’s calculation includes shifts ending at or after 8 pm (in contradiction with Plaintiff’s testimony that he defined “night shift” as outside the hours of 6am and 10pm). As a consequence, Plaintiff has not materially disputed that fewer of his shifts ended after 10 pm following his 40th birthday. (The Court notes that Plaintiff has objected to Defendants’ calculations and has overruled those objections.)

Defendants also argue that Andrade’s regular assignment to large events and night shifts does not constitute adverse employment action. (MSJ at 11: 12-18 [citing *Bailey v. S.F. Dist. Attorney’s Office* (2024) 16 Cal. 5th 611, 637; *Akers v. Cty. of San Diego* (2002) 95 Cal. App. 4th 1441, 1455; and *Malais v. L.A. City Fire Dep’t* (2007) 150 Cal. App. 4th 350, 358].) They argue that these types of schedules are existing terms and conditions of his employment, not any change.

Plaintiff does not engage with this authority or argument in opposition; instead Plaintiff argues “a multitude of actions constitute ones that adversely impacted Andrade’s job—disparately scheduling him for grueling night shifts alone, failing to accommodate his disability by continuing to schedule him night shifts, weekends, and difficult shifts consecutively, reducing his hours or refusing to schedule him following his accommodation requests, taking away his keys, forcing him to work in only one facility center, unnecessarily stalking him during his shifts, detaining him for several hours in a meeting on his mental health, repeatedly interrogating him, calling the police because he arrived to work a shift he was scheduled for, placing him on an unconsented leave, and wrongfully terminating him[.]” (Opp. at 16:18-24.) First, this argument omits any citation to Plaintiff’s evidence. Second, Plaintiff does not materially dispute UMF 6 which reads: “[t]he position description explicitly notes the possibility of irregular work schedules and assignment to evening shifts.” If irregular work schedules and night shifts are expected, an assignment to night shift cannot be adverse treatment within the meaning of FEHA.

The Court cannot conclude on the record before it that Plaintiff has made out a *prima facie* case for age discrimination. Defendants are entitled to summary adjudication on this claim.

2. Failure to Accommodate

Defendant argues that the District met its duty to accommodate at each juncture of Andrade’s employment. Specifically: with respect to Andrade’s April 2023 leave, his May 10-18 accommodation for morning and midday shifts as well as his May 18, 2023 leave, and his requested accommodation to

work mornings and midday shifts only from July 25, 2023 through his termination in January 2024.

Under FEHA, an employer must make reasonable accommodations for known physical or mental disabilities of an employee, unless it subjects the employer to an undue hardship. (Gov. Code, § 12940(m).) “The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff’s disability. [Citation.]” (*Scotch v. Art Institute of Calif.* (2009) 173 Cal.App.4th 986, 1009-1010.) “Two principles underlie a cause of action for failure to provide a reasonable accommodation. First, the employee must request an accommodation. [Citation.] Second, the parties must engage in an interactive process regarding the requested accommodation and, if the process fails, responsibility for the failure rests with the party who failed to participate in good faith. [Citation.]” (*Avila v. Continental Airlines, Inc.* (2008) 165 Cal.App.4th 1237, 1252.) “An employee whose disability is not apparent is ... obliged to tender a specific request for a necessary accommodation. [Citation.]” (*Spitzerv. The Good Guys, Inc.* (2000) 80 Cal.App.4th 1376, 1384.)

Additionally, Plaintiff must also show he or she suffers from a disability covered by FEHA and that he or she is a qualified individual. (*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 256.) To show that a plaintiff is a qualified individual, plaintiff must prove that he or she can perform the essential functions of the position to which reassignment is sought, rather than the essential functions of the existing position. (*Ibid.*) “The employee bears the burden of giving the employer notice of his or her disability. [Citation.]” (*Avila, supra*, 165 Cal.App.4th at p. 1252.) “Although no particular form is required, [t]he duty of an employer reasonably to accommodate an employee’s handicap does not arise until the employer is aware of the respondent’s disability and physical limitations.” (*Ibid* [internal quotations and citations omitted].) “[T]he employee can’t expect the employer to read his mind and know he secretly wanted a particular accommodation and sue the employer for not providing it. Nor is an employer ordinarily liable for failing to accommodate a disability of which it had no knowledge. ...” (*Id.* at pp. 1252-1253 [internal quotations and citations omitted].)

“[A]n employer who knows of a disability of an employee has an affirmative duty to make known to the employee other suitable job opportunities with the employer and to determine whether the employee is interested in, and qualified for, those positions, if the employer can do so without undue hardship or if the employer offers similar assistance or benefit to other disabled or nondisabled employees or has a policy of offered such assistance or benefit to any other employees.” (*Prilliman v. United Air Lines, Inc.* (1997) 53 Cal.App.4th 935, 951-952.)

Here, three specific requests for accommodation are at issue: Plaintiff’s 2023 leave, his May 10-18 accommodation and leave, and his July 2023 accommodation. (Defendants’ Notice of Motion at § II.) The Court starts with the “April 2023 Leave.”

On April 13, 2023 Plaintiff alleges that while he was on a night shift he “could go no further” and told his coworker “I have to go to the hospital.” (SAC at ¶ 18.) Defendant argues that this first period of leave “was both self-initiated and maintained due to his own representation that he was sick and could not return to work.” (Motion at 13:2-3; see also Ex. A [Andrade 1/9/25 Depo.] at 114:7 – 115:4.) Defendant also notes that “a notification of sickness does not put an employer on notice of a disability.” (Mot. at 13:4-5 [citing *Avila v. Continental Airlines, Inc.* (2008) 165 Cal.App.4th 1237,

1248].)

The undisputed evidence is that Andrade requested leave in April 2023 due to illness and the Defendant granted it. However, the SAC also alleges that prior to this “Mr. Andrade pleaded to Pleasant Hill to provide a regular two-day rest period during his weekly schedule. Specifically, on multiple occasions in early 2023, Mr. Andrade pleaded to his supervisor, Jose Martinez (“Mr. Martinez”) to not be scheduled for late-night shifts and to have at least two days off schedule each week. The late-night shifts substantially affected Mr. Andrade's well-being and mental health.” (SAC at ¶ 10.) In support of this allegation in his additional material facts in opposition, Plaintiff cites to his own deposition and declaration.

Q. Did you inform Pleasant Hill that you [were] requesting to be taken off graveyard shifts and for two consecutive days off are for your mental health?

[objection]

This would be before April 13th of 2023.

A. Yes.

Q. Did Pleasant Hill accommodate this request?

A. Before 2023?

Q. Before April 13th, 2023.

A. No, absolutely not.

Q. And April 13th, 2023, did you – did you call off work during your shift?

A. I did not phone call off work. I told Carlos that I needed to go to the hospital. Yes. So I considered that a call-out.

(Plaintiff's Depo. II 362:2-14.)

At paragraph 9 of his declaration, Plaintiff testifies that “[d]ue to my worsening mental health and worsening symptoms arising from my disability at this time, I requested that my supervisor, Jose Martinez, schedule me for reasonable working hours, including the express request that I receive at least two consecutive days off each work to be able to recover from the strenuous shifts Pleasant Hill imposed on me. I made these requests verbally to Jose Martinez on at least six different occasions from 2022 through April 13th, 2023.” (Andrade Decl. at ¶ 9.)

Defendant's motion does not address the precipitating requests prior to the April 2023 leave. The Court concludes that there is a genuine dispute of material fact with respect to whether Plaintiff requested accommodation (to be taken off graveyard shifts and for two consecutive days off) prior to his April 2023 leave and whether those requests were accommodated. As a consequence, the Court need not reach Defendants' arguments regarding the May 10-18 accommodation and leave or the July 2023 leave because they would not entirely dispose of Plaintiff's cause of action.

Defendants are not entitled to summary adjudication on this claim.

4. Workplace Harassment

Defendant moves for summary adjudication on Plaintiff's fourth cause of action for workplace harassment on the grounds that the evidence does not support the alleged scheduling abuse, scheduling and personnel decisions cannot serve as the basis for a harassment claim, the request for keys was neutral as to age or disability, and the call to police was privileged under Civil Code section 47(b).

In the SAC, Plaintiff alleges that Defendants unwelcome harassment included "requiring Mr. Andrade to work the most demanding shifts, forcing Mr. Andrade to be solely responsible for events consisting of more than 300 attendees and as against company policy, consecutively scheduling Mr. Andrade without reasonable time off, unilaterally taking Mr. Andrade off the schedule after requesting reasonable accommodations, berating Mr. Andrade and unreasonable[y] demanding that Mr. Andrade surrender his buildings keys in an attempt to force him to resign, calling the police on Mr. Andrade without cause providing false information to the police and causing Mr. Andrade to be subject to an involuntary hold." (SAC at ¶ 82.)

Under § 12940(j)(1) it is an unlawful employment practice "[f]or an employer ... because of ... physical disability ... [or] medical condition ... to harass an employee." Cal. Gov. Code § 12940(j)(1). The elements of a FEHA harassment claim are: (1) the plaintiff belongs to a protected group; (2) the plaintiff was subjected to unwelcome harassment because of being a member of that group; and (3) the harassment was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment. (*Lyle v. Warner Bros. Television Prods.* (2006) 38 Cal. 4th 264, 279.)

To prevail on a harassment claim under FEHA, a plaintiff must produce evidence they were subjected to "offensive comments or other abusive conduct" that is (1) based on a "protected characteristic" (here, a claimed disability) and (2) "sufficiently severe or pervasive as to alter the conditions of [his] employment." (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 871.) To constitute harassment, the conduct must be so objectively severe or pervasive as "'to create a hostile or abusive working environment.'" (*Id.* at p. 870.) Factors to consider in this context include the frequency of the conduct, its severity, whether it is physically threatening or humiliating, and whether it unreasonably interferes with the employee's work performance. (*Ibid.*)

FEHA "harassment claims focus on 'situations in which the *social environment of the workplace* becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.'" (*Carranza v. City of Los Angeles* (2025) 111 Cal.App.5th 388, 401 [emphasis original] [citing *Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 627].)

Scheduling

As discussed *infra*, the evidence before the Court does not support a conclusion that Plaintiff was subjected to abusive scheduling. Furthermore, Defendant has adduced authority which suggests that scheduling decisions are the type of personnel management actions that are actionable as discrimination if based on improper motives but cannot form the basis of a harassment claim. (See *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 65 [actions necessary to carry out the

duties of business and personnel management do not come within the meaning of harassment].)

Demand for Building Keys

With respect to Defendants demand for Plaintiff's building keys on May 18, 2023, Defendants refer to the following deposition testimony to support their contention that this request was not subjectively offensive nor aggressive:

Q. Do you recall whether Chris Petlock was telling you not to go into any of the meetings?

A. Yes. After the meeting with Chris Petlock and Lance Hurtado in Nicole Watson's office, after he gave me a blue piece of sticky note paper, I - when that meeting was over, after he was trying to get my keys -- it was a weird -- that was very awkward. I didn't really understand that meeting. As I walked out of that meeting, I went down the hallway, made a left, made a quick right, and went into the Rotary to feel safe because those guys -- I feel comfortable around the Rotary people. And I heard behind me, "Don't go in there." And I'm like, "I'm coming in here."

(Def Ex. A at 224:18 225:6 [1/16/2025 Andrade Depo].)

In opposition, Plaintiff gives additional testimony that the request for keys was aggressive:

Petlock and Herriman follow after me, watching me intently, stalking me from one room to another while I am trying to get away from them. Petlock and Herriman again usher me into a separate office space where Petlock starts to aggressively demand my building keys, lurching towards me and slamming his hand on the table. I believe that Petlock is trying to force me to resign through the act of handing over my building keys as I require my building keys to work. I did not wish to lose my job and generally feel unsafe throughout the interaction with Petlock.

(Pltf Exh. B, Decl. Plaintiff ¶ 21.)

These two statements are not necessarily in conflict. Neither does a demand for keys appear to support a cause of action for workplace harassment on its own. However, the greater context of this demand is what Plaintiff describes as an "interrogation." Specifically, the SAC details two instances where Plaintiff alleges he was "interrogated" in an office: an intense "interrogation" where he broke into tears (SAC at ¶ 24) and another confrontation where he alleges Defendant Petlock demanded his building keys in exchange for medical benefits (SAC at ¶ 25.)

Defendant argues on reply that "[n]either of these circumstances, however, is alleged in the SAC as bases for Plaintiff's harassment claim." (Reply at 9:6-7.) That is not strictly true; paragraphs 24 and 25 of the SAC detail two alleged "interrogations." And paragraph 76 of the cause of action for workplace harassment incorporates all of the proceeding allegations by reference.

Notably, however, "[w]orkplaces can be stressful and relationships between supervisors and their subordinates can often be contentious. But FEHA was not designed to make workplaces more collegial; its purpose is to eliminate more insidious behavior like discrimination and harassment based on protected characteristics." (*Doe v. Department of Corrections & Rehabilitation* (2019) 43

Cal.App.5th 721, 737.) "FEHA was not designed to make workplaces more collegial; its purpose is to eliminate more insidious behavior like discrimination and harassment based on protected characteristics." (*Ibid.*)

However, even if the "interrogation" incidents qualified as objectively severe and abusive, they would not constitute harassment because they involved personnel decisions by Petlock within the scope of his duties as Plaintiff's supervisor. That said, they may still support a claim for disability discrimination.

Police Call

Finally, the Court notes that the allegations regarding Defendants' call to police was the subject of a prior anti-SLAPP motion by Defendants. At the time of Defendants' anti-SLAPP motion, however, the Court could not conclude that Plaintiff was seeking recovery based on protected activity. Now, however, Plaintiff relies directly on his allegations of Defendants call to police, statements to police, and his subsequent involuntary hold to support his claim for workplace harassment. Defendants call and statements to police are privileged under Civil Code § 47(b) and cannot support Plaintiff's claim under Government Code § 12940(j)(1). "[A] communication concerning possible wrongdoing, made to an official government agency such as a local police department, and which communication is designed to prompt action by that entity, is as much a part of an 'official proceeding' as a communication made after an official investigation" (*Williams v. Taylor* (1982) 129 Cal. App. 3d 745, 753 [employer's report to law enforcement concerning suspected theft by former employee privileged under section 47(b)].)

Defendant is entitled to summary adjudication of Plaintiff's fourth cause of action for workplace harassment claim. However, as noted above, these factual allegations (aside from the call to police) may support Plaintiff's claim for disability discrimination.

Defendants are entitled to summary adjudication of Plaintiff's harassment claim.

3. Disability Discrimination

Defendants move for summary adjudication of Plaintiff's third cause of action for disability discrimination on the grounds that Plaintiff was not a capable employee at the time of his May 18, 2023 administrative leave.

"[T]he plaintiff bears the burden of establishing a *prima facie* case of discrimination based upon physical disability, the burden then shifts to the employer to offer a legitimate, nondiscriminatory reason for the adverse employment action. Once the employer has done so the plaintiff must offer evidence that the employer's stated reason is either false or pretextual, or evidence that the employer acted with discriminatory animus, or evidence of which would permit a reasonable trier of fact to conclude the employer intentionally discriminated." (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886, internal citations and quotations omitted.)

A *prima facie* case of disability discrimination requires a plaintiff to show that the plaintiff (1) suffered from a disability or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations; and (3) was subjected to an adverse employment action because of the disability or perceived disability. (*Sandell v. Taylor-Listug, Inc.*

(2010) 188 Cal.App.4th 297, 310.) “The prima facie burden is light; the evidence necessary to sustain the burden is minimal. [Citation.]” (*Ibid.*) Generally, an employee need only offer sufficient circumstantial evidence to give rise to a reasonable inference of discrimination. (*Ibid.*)

Defendants argue that “Andrade was not capable of performing the essential functions of his job when he was placed on paid administrative leave on May 18, 2023.” (Mot. at 14:12-13.) Defendants’ evidence in support of this contention is an email they received from an employee of Kaiser Permanente who was renting a District conference room that “expressed concern about Andrade lingering in the conference room even after being asked to leave, asking questions about mental health facilities of the attendees, looking at length at the sign-in sheets, and making the Kaiser staff feel uncomfortable.” (UMF 17.) Defendants also refer to Plaintiff’s involuntary psychiatric hold following their call to police as evidence he could not perform the essential duties of his job; the Court notes that notwithstanding this incident, Plaintiff returned to work on July 25, 2023. (UMF 26.) The Court cannot conclude that Defendants have met their initial burden with respect to this element. Defendants are not entitled to summary adjudication of Plaintiff’s claim for disability discrimination.

5. Failure to Prevent

Defendants’ argument with respect to Plaintiff’s failure to prevent claim is premised on their contention that his other claims fail. However, because the Court concludes that Defendants are not entitled to summary adjudication on Plaintiff’s disability discrimination claim, they are not entitled to summary adjudication on Plaintiff’s failure to prevent claim.

6. Retaliation

Defendants move for summary adjudication on Plaintiff’s sixth cause of action for retaliation on several grounds.

In a FEHA retaliation case, courts must apply the *McDonnell Douglas* burden-shifting framework that is applied in FEHA discrimination claims. Under this framework, the plaintiff must prove a *prima facie* case; the employer must then articulate a legitimate, nonretaliatory reason for the action; and the plaintiff must then prove the employer’s reason is a pretext. (*Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908,942; see *Flait v. North American Watch Corp.* (1992) 3 Cal.App.4th 467, 475-476.)

A defendant’s summary judgment motion “slightly modifies the order of these [*McDonnell Douglas*] showings.” (*Wills v. Superior Court* (2011) 195 Cal.App.4th 143,160). “Consequently, [Defendant has] the initial burden to either (1) negate an essential element of [Plaintiff’s] *prima facie* case [] or (2) establish a legitimate, non[retaliatory] reason for terminating [Plaintiff].” (*Id.*).

Because Plaintiff’s only remaining cause of action is for disability discrimination, the Court will focus its analysis there. Defendant argues that Plaintiff did not suffer an adverse employment action (the third essential element of a *prima facie* case of disability discrimination). Nevertheless, they acknowledge that Plaintiff’s January 2024 termination was an adverse employment action. But they argue that “it lacks any causal link to his engagement in any protected activity.” (Mot. at 20:12-13.) Furthermore, Defendants argue that the absence of temporal proximity between Plaintiff’s alleged protected activity and his termination is fatal to his cause of action for FEHA retaliation.

Plaintiff filed the instant lawsuit October 11, 2023 and was terminated just over three months later on January 31, 2024 (after a January 24, 2024 Skelly Notice). This temporal gap is not so wide that it cannot support an inference of causation. Perhaps tacitly acknowledging Plaintiff's *prima facie* case, Defendants argue that "Andrade's conduct on January 17, 2024 provided a legitimate, non-retaliatory basis for [his] termination." (Mot. at 20:24-25.) However, a jury could conclude from the temporal proximity along with Plaintiff's evidence regarding failure to accommodate and the allegations regarding his "interrogations" that Defendant's stated basis for termination is weak, implausible or inconsistent, such that the explanation is unworthy of credence. (*Hom v. Cushman & Wakefield Western* (1999) 72 Cal.App.4th 798, 806-807.)

Summary adjudication on the sixth cause of action is denied.

Objections to Evidence

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Plaintiff's Evidentiary Objection 1. This objection is compound; Plaintiff objects to four individual paragraphs of the Declaration of Slater Bleichner-Jones and Exhibit C thereto. **Overruled.**

5. 9:00 AM CASE NUMBER: C24-02918
CASE NAME: CAMAY MCELVANE VS. EAST BAY ASIAN LOCAL DEVELOPMENT CORPORATION
***HEARING ON MOTION IN RE: AN ORDER PRELIMINARILY APPROVING THE CLASS ACTION SETTLEMENT, NOTICE OF SETTLEMENT, AND SETTING HEARING FOR FINAL APPROVAL**
FILED BY: MCELVANE, CAMAY JONTUE
TENTATIVE RULING:

Summary

Plaintiff Camay Jontue McElvane, individually, and on behalf of others similarly situated, ("Plaintiff") filed a Motion for Order Preliminarily Approving the Class Action Settlement with Defendant East Bay Asian Local Development Corp. ("Defendant"), Approving Notice of Settlement and Setting a Hearing for Final Approval ("Motion"). The Motion is **granted** as set forth herein. No appearance is required at the hearing on July 1, 2026.

Background

Plaintiff's motion seeks preliminary approval of a class action and PAGA settlement. Plaintiff alleged ten wage and hour violations, including failure to pay minimum wages and overtime, meal and rest break violations, inaccurate wage statements, and failure to reimburse business expenses, plus a PAGA claim. The settlement class consists of approximately 232 non-exempt, hourly employees who worked for the defendant in California during the class period from October 28, 2020 to October 23, 2025.

The parties agreed to a non-reversionary gross settlement of \$439,000 after extensive negotiations assisted by mediator Brandon McKelvey. This amount was a compromise reflecting risks related to